

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

John R. Gaskey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to repeal the ban on handgun ownership for adults age 18 through 20.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>2/11/2025</i>

HOUSE No.

By Representative Gaskey of Carver, a petition (subject to Joint Rule 12) of John R. Gaskey relative to the purchasing of firearms. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to repeal the ban on handgun ownership for adults age 18 through 20.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Purpose

2 The purpose of this act is to align Massachusetts firearm laws with constitutional
3 principles as affirmed by recent federal court rulings (New York State Rifle and Pistol
4 Association, Inc. V. Bruen; Supreme Court decision 2022), including the decision by the Fifth
5 Circuit Court of Appeals, which found that restrictions on handgun sales to individuals aged 18
6 to 20 violate the Second Amendment of the United States Constitution. It has been long standing
7 law that the age of maturation is 18 years of age. Over time, the Massachusetts state legislature
8 has slowly taken away the common rights and advantages of adulthood while affirming other
9 rights, not only on adults aged 18-20, but on children as young as 11 years old.

10 SECTION 2. Amendment to Firearm Licensing Laws

11 (a) Chapter 140 of the General Laws, Section 131, is hereby amended by striking the
12 words “21 years of age” wherever they appear and inserting in place thereof the words “18 years
13 of age.”

14 (b) Chapter 140, Section 129B, is amended to allow individuals 18 years of age and older
15 to apply for a Firearm Identification (FID) card without restriction and for a License to Carry
16 (LTC) under the same conditions as those 21 and older.

17 SECTION 3. Lawful Purchase and Possession

18 (a) Any law restricting the purchase of handguns by individuals aged 18 to 20 is hereby
19 repealed.

20 (b) Licensed firearm dealers may lawfully sell handguns to individuals aged 18 and older
21 who meet all other requirements under state and federal law.

22 SECTION 4. Constitutional Compliance

23 This act is enacted in response to the ruling by the United States Court of Appeals for the
24 Fifth Circuit, which determined that bans on firearm purchases by legal adults aged 18 to 20 are
25 unconstitutional under the Second Amendment.

26 SECTION 5. Implementation and Effective Date

27 This act shall take effect immediately upon passage.